

WHICH BRANCH IS YOURS - THE SEC. 54-142A(F) WORKSHEET

Prepared for: Priya Ananya Ramachandran

WHAT THIS IS. Connecticut General Statutes Sec. 54-142a(f) reaches an ADULT misdemeanour conviction for conduct committed while you were under 18. It is an adult record - this is NOT juvenile delinquency relief - and Connecticut's word for the relief is ERASURE: not expungement, not sealing. No fee is charged at any point on this route (Sec. 54-142a(k)).

Two branches exist, they are alternatives rather than stages, and WHEN THE OFFENSE OCCURRED decides which one is yours. This worksheet does not choose for you: fill in the facts below from the record, and read the branch that matches.

THE FACTS THAT DECIDE THE BRANCH - fill each from the record, never from memory. Look the case up on the Connecticut Judicial Branch online case look-up to confirm the offense date, the charges on the information and the conviction location; nothing is looked up, obtained or inspected for you.

Date the offense happened, confirmed against the case look-up:

.....

Were you under 18 when the offense happened? (this route exists only if you were)

.....

Statute sections you were convicted under, copied from your record:

.....

Other charges on the same information, and whether any of them was one that could not be erased:

.....

Court location where the conviction was effected (needed only on the petition branch):

.....

BRANCH ONE - AUTOMATIC, Sec. 54-142a(f)(1). If the offense occurred ON OR AFTER 1 JANUARY 2000 AND BEFORE 1 JULY 2012, the conviction is erased - or, for scanned and other non-electronic records, DEEMED ERASED by operation of law. You file nothing, you sign nothing, and there is no form, because the erasure is the statute's own work.

Carve-outs on the automatic branch: it does not reach a motor vehicle offense, a violation under title 14, or a violation of Sec. 51-164r. Check the statute sections you copied above; if one of them is in those categories, this branch does not reach it.

HOW TO CONFIRM THE ERASURE HAPPENED. A deemed-erased record can still look visible. Check the Judicial Branch online case look-up for the case; ask the clerk's office of the Superior Court at the location where the conviction was effected what their file shows; and if a background check still discloses the conviction, take that report and this worksheet to a lawyer or a legal-aid office.

BRANCH TWO - PETITION, Sec. 54-142a(f)(2), offenses BEFORE 1 JANUARY 2000. The statute lets the person file a petition with the Superior Court at the location where the conviction was effected, and the court shall direct erasure. THIS PACKET DOES NOT GENERATE THAT PETITION, AND THAT IS DELIBERATE: no Judicial Branch form for an (f)(2) petition has been identified - JD-CR-202 is on its face a Clean Slate form, not an (f)(2) form - no accepted custom pleading is established, and the historical offense-date and classification rule is unresolved. A worksheet that guessed at that filing would be worse than none. If your offense date puts you on this branch, STOP HERE and take this worksheet to a lawyer or a legal-aid office; the clerk's office of the Superior Court at the location where the conviction was effected can also say what filings that court accepts.

THE SAME-INFORMATION LIMITATION, Sec. 54-142a(f)(3), APPLIES ON BOTH BRANCHES. Notwithstanding the multi-count rule at subsection (i), subsection (f) does not apply where there has been a conviction for any charge arising from the same information for which erasure would not apply. That is why the worksheet asks about the other charges on the information; if any of them could not be erased, stop and get advice.

WHEN TO STOP AND GET HELP

- the offense occurred before 1 January 2000 - the petition branch, for which no accepted filing vehicle has been identified;
- another charge arising from the same information could not be erased;
- the offense is a motor vehicle offense, a title 14 violation or a Sec. 51-164r violation;
- you have an immigration matter - erasure does not resolve immigration consequences.

WHAT THIS PACKET IS NOT. This is a worksheet and an explanation. It generates no filing on either branch, it is not legal advice, and it does not decide which branch is yours - the offense date on the record decides.

Route: obligation:unit:CT:ct-under18-misdemeanor:ct-under18-misdemeanor-branch-automatic